

STATE OF NEW YORK

5440--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 14, 2025

Introduced by M. of A. RAGA, SEAWRIGHT, SIMONE, TAPIA, REYES, MITAYNES, ROSENTHAL, GALLAGHER -- read once and referred to the Committee on Transportation -- recommitted to the Committee on Transportation in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to owner liability for failure of an operator to comply with traffic control indicators; to amend the public officers law, in relation to access to records prepared pursuant to traffic control indicators; and providing for the repeal of certain provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The vehicle and traffic law is amended by adding a new
2 section 1111-j to read as follows:

3 § 1111-j. Owner liability for failure of an operator to comply with
4 traffic control indicators. (a) 1. Notwithstanding any other provision
5 of law, the city of New York is hereby authorized to establish a demon-
6 stration program imposing monetary liability on the owner of a vehicle
7 for failure of an operator thereof to comply with posted traffic control
8 indicators in such city in accordance with the provisions of this
9 section. Such demonstration program shall empower the city to install
10 traffic control indicator photo devices on city vehicles and along
11 streets at locations determined by such city and to administer such
12 program in consultation with the New York city department of transporta-
13 tion.

14 2. Any photographs, microphotographs, videotape or other recorded
15 images captured by traffic control indicator photo devices shall be
16 inadmissible in any disciplinary proceeding convened by the city and any
17 proceeding initiated by the city involving licensure privileges of city
18 vehicle operators. Any traffic control indicator photo device mounted

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 along streets at locations determined by New York city or mounted on a
2 city vehicle shall be directed outwardly from such vehicle to capture
3 images of vehicles operated in violation of traffic control indicators,
4 and images produced by such device shall not be used for any other
5 purpose in the absence of a court order requiring such images to be
6 produced.

7 3. No traffic control indicator vehicle photo device shall be used
8 unless on the day it is to be used it has successfully passed a self-
9 test of its functions.

10 4. (i) Such demonstration program shall utilize necessary technologies
11 to ensure, to the extent practicable, that photographs, microphoto-
12 graphs, videotape or other recorded images produced by such traffic
13 control indicator photo device shall not include images that identify
14 the driver, the passengers, or the contents of the vehicle. Provided,
15 however, that no notice of liability issued pursuant to this section
16 shall be dismissed solely because such a photograph, microphotograph,
17 videotape or other recorded image allows for the identification of the
18 driver, the passengers, or the contents of vehicles where the city shows
19 that it made reasonable efforts to comply with the provisions of this
20 paragraph in such case.

21 (ii) Photographs, microphotographs, videotape or any other recorded
22 image from a traffic control indicator photo device shall be for the
23 exclusive use of the city for the purpose of the adjudication of liabil-
24 ity imposed pursuant to this section and of the owner receiving a notice
25 of liability pursuant to this section, and shall be destroyed by the
26 city within forty-eight hours of the final resolution of any notice of
27 liability to which such photographs, microphotographs, videotape or
28 other recorded images relate, or one year following the date of issuance
29 of such notice of liability, whichever is later. Notwithstanding the
30 provisions of any other law, rule or regulation to the contrary, photo-
31 graphs, microphotographs, videotape or any other recorded image from a
32 traffic control indicator photo device shall not be open to the public,
33 nor subject to civil or criminal process or discovery, nor used by any
34 court or administrative or adjudicatory body in any action or proceeding
35 therein except that which is necessary for the adjudication of a notice
36 of liability issued pursuant to this section, and no entity or employee,
37 officer or agent thereof shall disclose such information, except that
38 such photographs, microphotographs, videotape or any other recorded
39 images from such devices:

40 (A) shall be available for inspection and copying and use by the motor
41 vehicle owner and operator for so long as such photographs, microphoto-
42 graphs, videotape or other recorded images are required to be maintained
43 or are maintained by such entity, employee, officer or agent.

44 (B) (1) may be disclosed where required by federal law; and

45 (2) shall be furnished in response to a subpoena duces tecum signed by
46 a judge of competent jurisdiction and issued pursuant to article six
47 hundred ten of the criminal procedure law or a judge or magistrate of a
48 federal court authorized to issue such a subpoena duces tecum under
49 federal law, where the judge finds and the subpoena states that there is
50 reasonable cause to believe such information is relevant and material to
51 the defense of the alleged commission of a misdemeanor or felony in this
52 state or another state.

53 (C) shall be available for sharing between the city and any vendor
54 retained by the city for the purpose of deploying such devices. Any such
55 vendor shall be subject to the same restrictions as provided in this

1 section and shall not disclose such materials except as expressly
2 authorized under this section.

3 (iii) The demonstration program authorized pursuant to this section is
4 prohibited from utilizing and from arranging for the utilization of
5 biometric identifying technology, including but not limited to facial
6 recognition technology, for any purpose. The use, and the arrangement
7 for the use, of biometric identifying technology, including but not
8 limited to facial recognition technology, on photographs, microphoto-
9 graphs, videotape, or any other recorded image or data produced by a
10 traffic control indicator photo device, by any person for any purpose,
11 are prohibited. For purposes of this subparagraph, "person" shall
12 include, but not be limited to, a human being, a public or private
13 corporation, an unincorporated association, a partnership, a government
14 or a governmental instrumentality, a court or an administrative or adju-
15 dicatory body, and any employee, officer, and agent of the foregoing.

16 5. Every city vehicle upon which a traffic control indicator photo
17 device is installed and operated pursuant to a demonstration program
18 authorized pursuant to this section shall be equipped with signs, plac-
19 ards or other displays giving notice to approaching motor vehicle opera-
20 tors that traffic control indicator photo devices are used to enforce
21 traffic control indicators.

22 6. Warning notices of violation shall be issued during the first sixty
23 days that traffic control indicator photo devices pursuant to a demon-
24 stration program authorized by this section are active and in operation.

25 7. The city shall adopt and enforce measures:

26 (i) to upgrade signage at regular intervals stating that traffic
27 control indicator photo devices are used to enforce traffic control
28 indicators along such routes;

29 (ii) to prohibit the use or dissemination of vehicles' license plate
30 information and other information and images captured by traffic control
31 indicator photo devices except: (A) as required to establish liability
32 under this section or collect payment of penalties; or (B) as required
33 by federal law; and

34 (iii) to ensure compliance with the privacy protection measures.

35 (b) If the city has established a program pursuant to subdivision (a)
36 of this section, the owner of a vehicle shall be liable for a penalty
37 imposed pursuant to this section if such vehicle was parked in violation
38 of any parking rule of such city and such violation is evidenced by
39 information obtained from a traffic control indicator photo device.

40 (c) For purposes of this section, the following terms shall have the
41 following meanings:

42 1. "City" shall mean any city with a population over one million
43 persons.

44 2. "Manual on uniform traffic control devices" or "MUTCD" shall mean
45 the manual and specifications for a uniform system of traffic control
46 devices maintained by the commissioner of transportation pursuant to
47 section sixteen hundred eighty of this chapter.

48 3. "Owner" shall have the meaning provided in article two-B of this
49 chapter.

50 4. "Traffic control indicators" shall mean the prohibited parking,
51 standing, or stopping of any vehicle by the city of New York pursuant to
52 the rules of the New York city department of transportation, including
53 but not limited to during designated time periods as posted by signs or
54 street markings.

55 5. "Traffic control indicator photo device" shall mean a device that
56 is mounted along streets at locations determined by New York city as

1 well as a device that is mounted on a vehicle, is capable of operating
2 independently of an enforcement officer and produces one or more images
3 of each vehicle at the time it is in violation of traffic control indi-
4 cators.

5 6. "Biometric identifying technology" shall mean any tool using an
6 automated or semi-automated process that assists in verifying a person's
7 identity based on a person's biometric information.

8 7. "Biometric information" shall mean any measurable physical, physio-
9 logical or behavioral characteristics that are attributable to a person,
10 including but not limited to facial characteristics, fingerprint charac-
11 teristics, hand characteristics, eye characteristics, vocal character-
12 istics, and any other characteristics that can be used to identify a
13 person including, but not limited to: fingerprints; handprints; retina
14 and iris patterns; DNA sequence; voice; gait; and facial geometry.

15 8. "Facial recognition" shall mean any tool using an automated or
16 semi-automated process that assists in uniquely identifying or verifying
17 a person by comparing and analyzing patterns based on the person's face.

18 (d) A certificate, sworn to or affirmed by a technician employed by
19 the city, or a facsimile thereof, based upon inspection of photographs,
20 microphotographs, videotape or other recorded images produced by a traf-
21 fic control indicator photo device, shall be prima facie evidence of the
22 facts contained therein. Any photographs, microphotographs, videotape or
23 other recorded images evidencing such a violation shall be available for
24 inspection in any proceeding to adjudicate the liability for such
25 violation pursuant to this section.

26 (e) An owner liable for a violation of a parking rule imposed on any
27 route shall be liable for monetary penalties in accordance with a sched-
28 ule of fines and penalties promulgated by the parking violations bureau
29 of the city of New York; provided, however, that the monetary penalty
30 for violating a parking rule shall not exceed fifty dollars for the
31 first violation; one hundred dollars for a second violation within a
32 twelve-month period; one hundred fifty dollars for a third violation
33 within a twelve-month period; two hundred dollars for a fourth violation
34 within a twelve-month period; and two hundred fifty dollars for each
35 subsequent violation within a twelve-month period; provided, further,
36 that an owner shall be liable for an additional penalty not to exceed
37 twenty-five dollars for each violation for the failure to respond to a
38 notice of liability within the prescribed time period.

39 (f) An imposition of liability under the demonstration program estab-
40 lished pursuant to this section shall not be deemed a conviction as an
41 operator and shall not be made part of the operating record of the
42 person upon whom such liability is imposed nor shall it be used for
43 insurance purposes in the provision of motor vehicle insurance coverage.

44 (g) 1. A notice of liability shall be sent by first class mail to each
45 person alleged to be liable as an owner for a violation of a parking
46 rule. Personal delivery on the owner shall not be required. A manual or
47 automatic record of mailing prepared in the ordinary course of business
48 shall be prima facie evidence of the facts contained therein.

49 2. A notice of liability shall contain the name and address of the
50 person alleged to be liable as an owner for violation of a parking rule,
51 the registration number of the vehicle involved in such violation, the
52 location where such violation took place including the street or cross
53 streets, one or more images identifying the violation, the date and time
54 of such violation and the identification number of the traffic control
55 indicator photo device that recorded the violation or other document
56 locator number.

1 3. The notice of liability shall contain information advising the
2 person charged of the manner and the time in which such person may
3 contest the liability alleged in the notice. Such notice of liability
4 shall also contain a warning to advise the person charged that failure
5 to contest in the manner and time provided shall be deemed an admission
6 of liability and that a default judgment may be entered thereon.

7 4. The notice of liability shall be prepared and mailed by the agency
8 or agencies designated by the city, or any other entity authorized by
9 such city to prepare and mail such notification of violation.

10 5. Adjudication of the liability imposed upon owners by this section
11 shall be by the New York city parking violations bureau.

12 (h) If an owner of a vehicle receives a notice of liability pursuant
13 to this section for any time period during which the vehicle was
14 reported to the police department as having been stolen, it shall be a
15 valid defense to an allegation of liability for violation of a parking
16 rule of such city, that the vehicle had been reported to the police as
17 stolen prior to the time the violation occurred and had not been recov-
18 ered by such time. For purposes of asserting the defense provided by
19 this subdivision it shall be sufficient that a certified copy of the
20 police report on the stolen vehicle be sent by first class mail to the
21 city parking violations bureau.

22 (i) 1. An owner who is a lessor of a vehicle to which a notice of
23 liability was issued pursuant to subdivision (g) of this section shall
24 not be liable for the violation of the parking rule, provided that:

25 (i) prior to the violation, the lessor has filed with such parking
26 violations bureau in accordance with the provisions of section two
27 hundred thirty-nine of this chapter; and

28 (ii) within thirty-seven days after receiving notice from such bureau
29 of the date and time of such liability, together with the other informa-
30 tion contained in the original notice of liability, the lessor submits
31 to such bureau the correct name and address of the lessee of the vehicle
32 identified in the notice of liability at the time of such violation,
33 together with such other additional information contained in the rental,
34 lease or other contract document, as may be reasonably required by such
35 bureau pursuant to regulations that may be promulgated for such purpose.

36 2. Failure to comply with subparagraph (ii) of paragraph one of this
37 subdivision shall render the lessor liable for the penalty prescribed in
38 this section.

39 3. Where the lessor complies with the provisions of paragraph one of
40 this subdivision, the lessee of such vehicle on the date of such
41 violation shall be deemed to be the owner of such vehicle for purposes
42 of this section, shall be subject to liability for such violation pursu-
43 ant to this section, and shall be sent a notice of liability pursuant to
44 subdivision (g) of this section.

45 (j) Nothing in this section shall be construed to limit the liability
46 of an operator of a vehicle for any violation of a parking rule.

47 (k) If the city adopts a demonstration program pursuant to subdivision
48 (a) of this section, such city's department of transportation shall
49 submit a report on the results of the use of traffic control indicator
50 photo devices to the governor, the temporary president of the senate,
51 and the speaker of the assembly two years after the demonstration is
52 adopted. The department of transportation of the city of New York shall
53 also make such reports available on their public-facing websites,
54 provided that they may provide aggregate data from paragraph one of this
55 subdivision if the city finds that publishing specific location data

1 would jeopardize public safety. Such report shall include, but not be
2 limited to:

3 1. a description of the locations and/or vehicles where traffic
4 control indicator vehicle photo devices were used;

5 2. the total number of violations recorded on a monthly and annual
6 basis;

7 3. the total number of notices of liability issued;

8 4. the number of fines and total amount of fines paid after the first
9 notice of liability;

10 5. the number of violations adjudicated and results of such adjudi-
11 cations including breakdowns of dispositions made;

12 6. the total amount of revenue realized by such city and department
13 and an itemized list of expenditures made by the city and department
14 with these revenues;

15 7. the quality of the adjudication process and its results;

16 8. the total number of cameras by type of camera used; and

17 9. the total cost to such city.

18 (l) It shall be a defense to any prosecution for a violation of a
19 parking rule pursuant to a demonstration program adopted pursuant to
20 this section that such traffic control indicator photo devices were
21 malfunctioning at the time of the alleged violation.

22 § 2. Subdivision 1 of section 235 of the vehicle and traffic law, as
23 amended by section 1 of part N of chapter 58 of the laws of 2025, is
24 amended to read as follows:

25 1. Notwithstanding any inconsistent provision of any general, special
26 or local law or administrative code to the contrary, in any city which
27 heretofore or hereafter is authorized to establish an administrative
28 tribunal: (a) to hear and determine complaints of traffic infractions
29 constituting parking, standing or stopping violations, or (b) to adjudi-
30 cate the liability of owners for violations of subdivision (d) of
31 section eleven hundred eleven of this chapter imposed pursuant to a
32 local law or ordinance imposing monetary liability on the owner of a
33 vehicle for failure of an operator thereof to comply with traffic-con-
34 trol indications through the installation and operation of traffic-con-
35 trol signal photo violation-monitoring systems, in accordance with arti-
36 cle twenty-four of this chapter, or (c) to adjudicate the liability of
37 owners for violations of subdivision (b), (c), (d), (f) or (g) of
38 section eleven hundred eighty of this chapter imposed pursuant to a
39 demonstration program imposing monetary liability on the owner of a
40 vehicle for failure of an operator thereof to comply with such posted
41 maximum speed limits through the installation and operation of photo
42 speed violation monitoring systems, in accordance with article thirty of
43 this chapter, or (d) to adjudicate the liability of owners for
44 violations of bus lane restrictions as defined by article twenty-four of
45 this chapter imposed pursuant to a bus rapid transit program imposing
46 monetary liability on the owner of a vehicle for failure of an operator
47 thereof to comply with such bus lane restrictions through the installa-
48 tion and operation of bus lane photo devices, in accordance with article
49 twenty-four of this chapter, or (e) to adjudicate the liability of
50 owners for violations of toll collection regulations imposed by certain
51 public authorities pursuant to the law authorizing such public authori-
52 ties to impose monetary liability on the owner of a vehicle for failure
53 of an operator thereof to comply with toll collection regulations of
54 such public authorities through the installation and operation of
55 photo-monitoring systems, in accordance with the provisions of section
56 two thousand nine hundred eighty-five of the public authorities law and

sections sixteen-a, sixteen-b and sixteen-c of chapter seven hundred seventy-four of the laws of nineteen hundred fifty, or (f) to adjudicate the liability of owners for violations of section eleven hundred seventy-four of this chapter when meeting a school bus marked and equipped as provided in subdivisions twenty and twenty-one-c of section three hundred seventy-five of this chapter imposed pursuant to a local law or ordinance imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with school bus red visual signals through the installation and operation of school bus photo violation monitoring systems, in accordance with article twenty-nine of this chapter, or (g) to adjudicate the liability of owners for violations of section three hundred eighty-five of this chapter and the rules of the applicable covered agency or covered authority as such terms are defined in article ten of this chapter in relation to gross vehicle weight and/or axle weight violations imposed pursuant to a weigh in motion demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such gross vehicle weight and/or axle weight restrictions through the installation and operation of weigh in motion violation monitoring systems, in accordance with article ten of this chapter, or (h) to adjudicate the liability of owners for violations of subdivision (b), (d), (f) or (g) of section eleven hundred eighty of this chapter imposed pursuant to a demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such posted maximum speed limits within a highway construction or maintenance work area through the installation and operation of photo speed violation monitoring systems, in accordance with article thirty of this chapter, or (i) to adjudicate the liability of owners for violations of bus operation-related traffic regulations as defined by article twenty-four of this chapter imposed pursuant to a demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such bus operation-related traffic regulations through the installation and operation of bus operation-related photo devices, in accordance with article twenty-four of this chapter, or (j) to adjudicate the liability of owners for violations of traffic control indicators as defined by article twenty-four of this chapter imposed pursuant to a program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such traffic control indicators through the installation and operation of traffic control indicator photo devices, in accordance with article twenty-four of this chapter, such tribunal and the rules and regulations pertaining thereto shall be constituted in substantial conformance with the following sections.

§ 3. Subdivision 1 of section 236 of the vehicle and traffic law, as amended by section 2 of part N of chapter 58 of the laws of 2025, is amended to read as follows:

1. Creation. In any city as hereinbefore or hereafter authorized such tribunal when created shall be known as the parking violations bureau and shall have jurisdiction of traffic infractions which constitute a parking violation and, where authorized: (a) to adjudicate the liability of owners for violations of subdivision (d) of section eleven hundred eleven of this chapter imposed pursuant to a local law or ordinance imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with traffic-control indications through the installation and operation of traffic-control signal photo violation-monitoring systems, in accordance with article twenty-four of this chap-

1 ter, or (b) to adjudicate the liability of owners for violations of
2 subdivision (b), (c), (d), (f) or (g) of section eleven hundred eighty
3 of this chapter imposed pursuant to a demonstration program imposing
4 monetary liability on the owner of a vehicle for failure of an operator
5 thereof to comply with such posted maximum speed limits through the
6 installation and operation of photo speed violation monitoring systems,
7 in accordance with article thirty of this chapter, or (c) to adjudicate
8 the liability of owners for violations of bus lane restrictions as
9 defined by article twenty-four of this chapter imposed pursuant to a bus
10 rapid transit program imposing monetary liability on the owner of a
11 vehicle for failure of an operator thereof to comply with such bus lane
12 restrictions through the installation and operation of bus lane photo
13 devices, in accordance with article twenty-four of this chapter, or (d)
14 to adjudicate the liability of owners for violations of toll collection
15 regulations imposed by certain public authorities pursuant to the law
16 authorizing such public authorities to impose monetary liability on the
17 owner of a vehicle for failure of an operator thereof to comply with
18 toll collection regulations of such public authorities through the
19 installation and operation of photo-monitoring systems, in accordance
20 with the provisions of section two thousand nine hundred eighty-five of
21 the public authorities law and sections sixteen-a, sixteen-b and
22 sixteen-c of chapter seven hundred seventy-four of the laws of nineteen
23 hundred fifty, or (e) to adjudicate the liability of owners for
24 violations of section eleven hundred seventy-four of this chapter when
25 meeting a school bus marked and equipped as provided in subdivisions
26 twenty and twenty-one-c of section three hundred seventy-five of this
27 chapter imposed pursuant to a local law or ordinance imposing monetary
28 liability on the owner of a vehicle for failure of an operator thereof
29 to comply with school bus red visual signals through the installation
30 and operation of school bus photo violation monitoring systems, in
31 accordance with article twenty-nine of this chapter, or (f) to adjudi-
32 cate the liability of owners for violations of section three hundred
33 eighty-five of this chapter and the rules of the applicable covered
34 agency or covered authority as such terms are defined in article ten of
35 this chapter in relation to gross vehicle weight and/or axle weight
36 violations imposed pursuant to a weigh in motion demonstration program
37 imposing monetary liability on the owner of a vehicle for failure of an
38 operator thereof to comply with such gross vehicle weight and/or axle
39 weight restrictions through the installation and operation of weigh in
40 motion violation monitoring systems, in accordance with article ten of
41 this chapter, or (g) to adjudicate the liability of owners for
42 violations of subdivision (b), (d), (f) or (g) of section eleven hundred
43 eighty of this chapter imposed pursuant to a demonstration program
44 imposing monetary liability on the owner of a vehicle for failure of an
45 operator thereof to comply with such posted maximum speed limits within
46 a highway construction or maintenance work area through the installation
47 and operation of photo speed violation monitoring systems, in accordance
48 with article thirty of this chapter, or (h) to adjudicate the liability
49 of owners for violations of bus operation-related traffic regulations as
50 defined by article twenty-four of this chapter imposed pursuant to a
51 demonstration program imposing monetary liability on the owner of a
52 vehicle for failure of an operator thereof to comply with such bus oper-
53 ation-related traffic regulations through the installation and operation
54 of bus operation-related photo devices, in accordance with article twen-
55 ty-four of this chapter, or (i) to adjudicate the liability of owners
56 for violations of traffic control indicators as defined by article twen-

ty-four of this chapter imposed pursuant to a program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such traffic control indicators through the installation and operation of traffic control indicator photo devices, in accordance with article twenty-four of this chapter. Such tribunal, except in a city with a population of one million or more, shall also have jurisdiction of abandoned vehicle violations. For the purposes of this article, a parking violation is the violation of any law, rule or regulation providing for or regulating the parking, stopping or standing of a vehicle. In addition for purposes of this article, "commissioner" shall mean and include the commissioner of traffic of the city or an official possessing authority as such a commissioner.

§ 4. Paragraph f of subdivision 1 of section 239 of the vehicle and traffic law, as amended by section 3 of part N of chapter 58 of the laws of 2025, is amended to read as follows:

f. "Notice of violation" means a notice of violation as defined in subdivision nine of section two hundred thirty-seven of this article, but shall not be deemed to include a notice of liability issued pursuant to authorization set forth in articles ten, twenty-four, twenty-nine and thirty of this chapter, section two thousand nine hundred eighty-five of the public authorities law and sections sixteen-a, sixteen-b and sixteen-c of chapter seven hundred seventy-four of the laws of nineteen hundred fifty to impose monetary liability on the owner of a vehicle for failure of an operator thereof: to comply with traffic-control indications in violation of subdivision (d) of section eleven hundred eleven of this chapter through the installation and operation of traffic-control signal photo violation-monitoring systems, in accordance with article twenty-four of this chapter; or to comply with certain posted maximum speed limits in violation of subdivision (b), (c), (d), (f) or (g) of section eleven hundred eighty of this chapter through the installation and operation of photo speed violation monitoring systems, in accordance with article thirty of this chapter; or to comply with bus lane restrictions as defined by article twenty-four of this chapter through the installation and operation of bus lane photo devices, in accordance with article twenty-four of this chapter; or to comply with toll collection regulations of certain public authorities through the installation and operation of photo-monitoring systems, in accordance with the provisions of section two thousand nine hundred eighty-five of the public authorities law and sections sixteen-a, sixteen-b and sixteen-c of chapter seven hundred seventy-four of the laws of nineteen hundred fifty; or to stop for a school bus displaying a red visual signal in violation of section eleven hundred seventy-four of this chapter through the installation and operation of school bus photo violation monitoring systems, in accordance with article twenty-nine of this chapter; or to comply with certain posted maximum speed limits in violation of subdivision (b), (d), (f) or (g) of section eleven hundred eighty of this chapter within a highway construction or maintenance work area through the installation and operation of photo speed violation monitoring systems, in accordance with article thirty of this chapter; or to comply with gross vehicle weight and/or axle weight restrictions in violation of section three hundred eighty-five of this chapter and the rules of the applicable covered agency or covered authority as such terms are defined in article ten of this chapter through the installation and operation of weigh in motion violation monitoring systems, in accordance with article ten of this chapter; or to comply with bus operation-related traffic regulations as defined by article twenty-four of

1 this chapter in violation of the rules of the department of transporta-
2 tion of the city of New York through the installation and operation of
3 bus operation-related photo devices, in accordance with article twenty-
4 four of this chapter; or to comply with traffic control indicators as
5 defined by article twenty-four of this chapter through the installation
6 and operation of traffic control indicator photo devices, in accordance
7 with article twenty-four of this chapter.

8 § 5. Subdivisions 1, 1-a and the opening paragraph of paragraph (a) of
9 subdivision 1-b of section 240 of the vehicle and traffic law, subdivi-
10 sions 1 and 1-a as amended by section 4 of part N of chapter 58 of the
11 laws of 2025 and the opening paragraph of paragraph (a) of subdivision
12 1-b as amended by section 5 of part MM of chapter 56 of the laws of
13 2023, are amended to read as follows:

14 1. Notice of hearing. Whenever a person charged with a parking
15 violation enters a plea of not guilty; or a person alleged to be liable
16 in accordance with any provisions of law specifically authorizing the
17 imposition of monetary liability on the owner of a vehicle for failure
18 of an operator thereof: to comply with traffic-control indications in
19 violation of subdivision (d) of section eleven hundred eleven of this
20 chapter through the installation and operation of traffic-control signal
21 photo violation-monitoring systems, in accordance with article twenty-
22 four of this chapter; or to comply with certain posted maximum speed
23 limits in violation of subdivision (b), (c), (d), (f) or (g) of section
24 eleven hundred eighty of this chapter through the installation and oper-
25 ation of photo speed violation monitoring systems, in accordance with
26 article thirty of this chapter; or to comply with bus lane restrictions
27 as defined by article twenty-four of this chapter through the installa-
28 tion and operation of bus lane photo devices, in accordance with article
29 twenty-four of this chapter; or to comply with toll collection regu-
30 lations of certain public authorities through the installation and oper-
31 ation of photo-monitoring systems, in accordance with the provisions of
32 section two thousand nine hundred eighty-five of the public authorities
33 law and sections sixteen-a, sixteen-b and sixteen-c of chapter seven
34 hundred seventy-four of the laws of nineteen hundred fifty; or to stop
35 for a school bus displaying a red visual signal in violation of section
36 eleven hundred seventy-four of this chapter through the installation and
37 operation of school bus photo violation monitoring systems, in accord-
38 ance with article twenty-nine of this chapter; or to comply with certain
39 posted maximum speed limits in violation of subdivision (b), (d), (f) or
40 (g) of section eleven hundred eighty of this chapter within a highway
41 construction or maintenance work area through the installation and oper-
42 ation of photo speed violation monitoring systems, in accordance with
43 article thirty of this chapter; or to comply with gross vehicle weight
44 and/or axle weight restrictions in violation of section three hundred
45 eighty-five of this chapter and the rules of the applicable covered
46 agency or covered authority as such terms are defined in article ten of
47 this chapter through the installation and operation of weigh in motion
48 violation monitoring systems, in accordance with article ten of this
49 chapter; or to comply with bus operation-related traffic regulations as
50 defined by article twenty-four of this chapter in violation of the rules
51 of the department of transportation of the city of New York through the
52 installation and operation of bus operation-related photo devices, in
53 accordance with article twenty-four of this chapter; or to comply with
54 traffic control indicators as defined by article twenty-four of this
55 chapter through the installation and operation of traffic control indi-
56 cator photo devices, in accordance with article twenty-four of this

1 chapter, contests such allegation, the bureau shall advise such person
2 personally by such form of first class mail as the director may direct
3 of the date on which such person must appear to answer the charge at a
4 hearing. The form and content of such notice of hearing shall be
5 prescribed by the director, and shall contain a warning to advise the
6 person so pleading or contesting that failure to appear on the date
7 designated, or on any subsequent adjourned date, shall be deemed an
8 admission of liability, and that a default judgment may be entered thereon.
9

10 1-a. Fines and penalties. Whenever a plea of not guilty has been
11 entered, or the bureau has been notified that an allegation of liability
12 in accordance with provisions of law specifically authorizing the imposition
13 of monetary liability on the owner of a vehicle for failure of an
14 operator thereof: to comply with traffic-control indications in
15 violation of subdivision (d) of section eleven hundred eleven of this
16 chapter through the installation and operation of traffic-control signal
17 photo violation-monitoring systems, in accordance with article twenty-
18 four of this chapter; or to comply with certain posted maximum speed
19 limits in violation of subdivision (b), (c), (d), (f) or (g) of section
20 eleven hundred eighty of this chapter through the installation and operation
21 of photo speed violation monitoring systems, in accordance with
22 article thirty of this chapter; or to comply with bus lane restrictions
23 as defined by article twenty-four of this chapter through the installation
24 and operation of bus lane photo devices, in accordance with article
25 twenty-four of this chapter; or to comply with toll collection regulations
26 of certain public authorities through the installation and operation
27 of photo-monitoring systems, in accordance with the provisions of
28 section two thousand nine hundred eighty-five of the public authorities
29 law and sections sixteen-a, sixteen-b and sixteen-c of chapter seven
30 hundred seventy-four of the laws of nineteen hundred fifty; or to stop
31 for a school bus displaying a red visual signal in violation of section
32 eleven hundred seventy-four of this chapter through the installation and
33 operation of school bus photo violation monitoring systems, in accordance
34 with article twenty-nine of this chapter; or to comply with certain
35 posted maximum speed limits in violation of subdivision (b), (d), (f) or
36 (g) of section eleven hundred eighty of this chapter within a highway
37 construction or maintenance work area through the installation and operation
38 of photo speed violation monitoring systems, in accordance with
39 article thirty of this chapter; or to comply with gross vehicle weight
40 and/or axle weight restrictions in violation of section three hundred
41 eighty-five of this chapter and the rules of the applicable covered
42 agency or covered authority as such terms are defined in article ten of
43 this chapter through the installation and operation of weigh in motion
44 violation monitoring systems, in accordance with article ten of this
45 chapter; or to comply with bus operation-related traffic regulations as
46 defined by article twenty-four of this chapter in violation of the rules
47 of the department of transportation of the city of New York through the
48 installation and operation of bus operation-related photo devices, in
49 accordance with article twenty-four of this chapter; or to comply with
50 traffic control indicators as defined by article twenty-four of this
51 chapter through the installation and operation of traffic control indicator
52 photo devices, in accordance with article twenty-four of this
53 chapter, is being contested, by a person in a timely fashion and a hearing
54 upon the merits has been demanded, but has not yet been held, the
55 bureau shall not issue any notice of fine or penalty to that person
56 prior to the date of the hearing.

1 In a city having a population of one million or more, at every hearing
2 for the adjudication of a notice of liability, as provided by this arti-
3 cle, there shall be a rebuttable presumption that the owner of a first-
4 response emergency vehicle alleged to be liable in accordance with any
5 provisions of law specifically authorizing the imposition of monetary
6 liability on the owner of a vehicle for failure of an operator thereof:
7 to comply with traffic-control indications in violation of subdivision
8 (d) of section eleven hundred eleven of this chapter through the instal-
9 lation and operation of traffic-control signal photo violation-monitor-
10 ing systems, in accordance with article twenty-four of this chapter; or
11 to comply with certain posted maximum speed limits in violation of
12 subdivision (b), (c), (d), (f) or (g) of section eleven hundred eighty
13 of this chapter through the installation and operation of photo speed
14 violation monitoring systems, in accordance with article thirty of this
15 chapter; or to comply with bus lane restrictions as defined by article
16 twenty-four of this chapter through the installation and operation of
17 bus lane photo devices, in accordance with article twenty-four of this
18 chapter; or to comply with bus operation-related traffic regulations as
19 defined by article twenty-four of this chapter in violation of the rules
20 of the department of transportation of the city of New York through the
21 installation and operation of bus operation-related photo devices, in
22 accordance with article twenty-four of this chapter; or to comply with
23 traffic control indicators as defined by article twenty-four of this
24 chapter through the installation and operation of traffic control indi-
25 cator photo devices, in accordance with article twenty-four of this
26 chapter is not liable for such alleged violation if such owner of the
27 first-response emergency vehicle provides the hearing officer with:

28 § 6. Paragraphs a and g of subdivision 2 of section 240 of the vehicle
29 and traffic law, as amended by section 5 of part N of chapter 58 of the
30 laws of 2025, are amended to read as follows:

31 a. Every hearing for the adjudication of a charge of parking violation
32 or an allegation of liability of an owner for a violation of subdivision
33 (d) of section eleven hundred eleven of this chapter imposed pursuant to
34 a local law or ordinance imposing monetary liability on the owner of a
35 vehicle for failure of an operator thereof to comply with traffic-con-
36 trol indications through the installation and operation of traffic-con-
37 trol signal photo violation-monitoring systems, in accordance with arti-
38 cle twenty-four of this chapter, or an allegation of liability of an
39 owner for a violation of subdivision (b), (c), (d), (f) or (g) of
40 section eleven hundred eighty of this chapter imposed pursuant to a
41 demonstration program imposing monetary liability on the owner of a
42 vehicle for failure of an operator thereof to comply with certain posted
43 maximum speed limits through the installation and operation of photo
44 speed violation monitoring systems, in accordance with article thirty of
45 this chapter, or an allegation of liability of an owner for a violation
46 of bus lane restrictions as defined by article twenty-four of this chap-
47 ter imposed pursuant to a bus rapid transit program imposing monetary
48 liability on the owner of a vehicle for failure of an operator thereof
49 to comply with such bus lane restrictions through the installation and
50 operation of bus lane photo devices, in accordance with article twenty-
51 four of this chapter, or an allegation of liability of an owner for a
52 violation of toll collection regulations imposed by certain public
53 authorities pursuant to the law authorizing such public authorities to
54 impose monetary liability on the owner of a vehicle for failure of an
55 operator thereof to comply with toll collection regulations of such
56 public authorities through the installation and operation of photo-moni-

toring systems, in accordance with the provisions of section two thousand nine hundred eighty-five of the public authorities law and sections sixteen-a, sixteen-b and sixteen-c of chapter seven hundred seventy-four of the laws of nineteen hundred fifty, or an allegation of liability of an owner for a violation of section eleven hundred seventy-four of this chapter when meeting a school bus marked and equipped as provided in subdivisions twenty and twenty-one-c of section three hundred seventy-five of this chapter imposed pursuant to a local law or ordinance imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with school bus red visual signals through the installation and operation of school bus photo violation monitoring systems, in accordance with article twenty-nine of this chapter, or an allegation of liability of an owner for a violation of subdivision (b), (d), (f) or (g) of section eleven hundred eighty of this chapter imposed pursuant to a demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with certain posted maximum speed limits within a highway construction or maintenance work area through the installation and operation of photo speed violation monitoring systems, in accordance with article thirty of this chapter, or an allegation of liability of an owner for a violation of section three hundred eighty-five of this chapter and the rules of the applicable covered agency or covered authority as such terms are defined in article ten of this chapter in relation to gross vehicle weight and/or axle weight violations imposed pursuant to a weigh in motion demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such gross vehicle weight and/or axle weight restrictions through the installation and operation of weigh in motion violation monitoring systems, in accordance with article ten of this chapter, or an allegation of liability of an owner for a violation of bus operation-related traffic regulations as defined by article twenty-four of this chapter imposed pursuant to a demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such bus operation-related traffic regulations through the installation and operation of bus operation-related photo devices, in accordance with article twenty-four of this chapter, or an allegation of liability of an owner for a violation of traffic control indicators as defined by article twenty-four of this chapter imposed pursuant to a program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such traffic control indicators through the installation and operation of traffic control indicator photo devices, in accordance with article twenty-four of this chapter, shall be held before a hearing examiner in accordance with rules and regulations promulgated by the bureau.

g. A record shall be made of a hearing on a plea of not guilty or of a hearing at which liability in accordance with any provisions of law specifically authorizing the imposition of monetary liability on the owner of a vehicle for failure of an operator thereof: to comply with traffic-control indications in violation of subdivision (d) of section eleven hundred eleven of this chapter through the installation and operation of traffic-control signal photo violation-monitoring systems, in accordance with article twenty-four of this chapter; to comply with certain posted maximum speed limits in violation of subdivision (b), (c), (d), (f) or (g) of section eleven hundred eighty of this chapter through the installation and operation of photo speed violation monitoring systems, in accordance with article thirty of this chapter; to

1 comply with bus lane restrictions as defined by article twenty-four of
2 this chapter through the installation and operation of bus lane photo
3 devices, in accordance with article twenty-four of this chapter; to
4 comply with toll collection regulations of certain public authorities
5 through the installation and operation of photo-monitoring systems, in
6 accordance with the provisions of section two thousand nine hundred
7 eighty-five of the public authorities law and sections sixteen-a,
8 sixteen-b and sixteen-c of chapter seven hundred seventy-four of the
9 laws of nineteen hundred fifty; to stop for a school bus displaying a
10 red visual signal in violation of section eleven hundred seventy-four of
11 this chapter through the installation and operation of school bus photo
12 violation monitoring systems, in accordance with article twenty-nine of
13 this chapter; to comply with certain posted maximum speed limits in
14 violation of subdivision (b), (d), (f) or (g) of section eleven hundred
15 eighty of this chapter within a highway construction or maintenance work
16 area through the installation and operation of photo speed violation
17 monitoring systems, in accordance with article thirty of this chapter;
18 to comply with gross vehicle weight and/or axle weight restrictions in
19 violation of section three hundred eighty-five of this chapter and the
20 rules of the applicable covered agency or covered authority as such
21 terms are defined in article ten of this chapter through the installa-
22 tion and operation of weigh in motion violation monitoring systems, in
23 accordance with article ten of this chapter; ~~[or]~~ to comply with bus
24 operation-related traffic regulations as defined by article twenty-four
25 of this chapter in violation of the rules of the department of transpor-
26 tation of the city of New York through the installation and operation of
27 bus operation-related photo devices, in accordance with article twenty-
28 four of this chapter; or to comply with traffic control indicators as
29 defined by article twenty-four of this chapter through the installation
30 and operation of traffic control indicator photo devices, in accord-
31 ance with article twenty-four of this chapter, is contested. Recording
32 devices may be used for the making of the record.

33 § 7. Subdivisions 1 and 2 of section 241 of the vehicle and traffic
34 law, as amended by section 6 of part N of chapter 58 of the laws of
35 2025, are amended to read as follows:

36 1. The hearing examiner shall make a determination on the charges,
37 either sustaining or dismissing them. Where the hearing examiner deter-
38 mines that the charges have been sustained such hearing examiner may
39 examine either the prior parking violations record or the record of
40 liabilities incurred in accordance with any provisions of law specif-
41 ically authorizing the imposition of monetary liability on the owner of
42 a vehicle for failure of an operator thereof: to comply with traffic-
43 control indications in violation of subdivision (d) of section eleven
44 hundred eleven of this chapter through the installation and operation of
45 traffic-control signal photo violation-monitoring systems, in accordance
46 with article twenty-four of this chapter; to comply with certain posted
47 maximum speed limits in violation of subdivision (b), (c), (d), (f) or
48 (g) of section eleven hundred eighty of this chapter through the instal-
49 lation and operation of photo speed violation monitoring systems, in
50 accordance with article thirty of this chapter; to comply with bus lane
51 restrictions as defined by article twenty-four of this chapter through
52 the installation and operation of bus lane photo devices, in accordance
53 with article twenty-four of this chapter; to comply with toll collection
54 regulations of certain public authorities through the installation and
55 operation of photo-monitoring systems, in accordance with the provisions
56 of section two thousand nine hundred eighty-five of the public authori-

ties law and sections sixteen-a, sixteen-b and sixteen-c of chapter seven hundred seventy-four of the laws of nineteen hundred fifty; to stop for a school bus displaying a red visual signal in violation of section eleven hundred seventy-four of this chapter through the installation and operation of school bus photo violation monitoring systems, in accordance with article twenty-nine of this chapter; to comply with certain posted maximum speed limits in violation of subdivision (b), (d), (f) or (g) of section eleven hundred eighty of this chapter within a highway construction or maintenance work area through the installation and operation of photo speed violation monitoring systems, in accordance with article thirty of this chapter; to comply with gross vehicle weight and/or axle weight restrictions in violation of section three hundred eighty-five of this chapter and the rules of the applicable covered agency or covered authority as such terms are defined in article ten of this chapter through the installation and operation of weigh in motion violation monitoring systems, in accordance with article ten of this chapter; ~~or~~ to comply with bus operation-related traffic regulations as defined by article twenty-four of this chapter in violation of the rules of the department of transportation of the city of New York through the installation and operation of bus operation-related photo devices, in accordance with article twenty-four of this chapter; or to comply with traffic control indicators as defined by article twenty-four of this chapter through the installation and operation of traffic control indicator photo devices, in accordance with article twenty-four of this chapter, of the person charged, as applicable prior to rendering a final determination. Final determinations sustaining or dismissing charges shall be entered on a final determination roll maintained by the bureau together with records showing payment and nonpayment of penalties.

2. Where an operator or owner fails to enter a plea to a charge of a parking violation or contest an allegation of liability in accordance with any provisions of law specifically authorizing the imposition of monetary liability on the owner of a vehicle for failure of an operator thereof: to comply with traffic-control indications in violation of subdivision (d) of section eleven hundred eleven of this chapter through the installation and operation of traffic-control signal photo violation-monitoring systems, in accordance with article twenty-four of this chapter; to comply with certain posted maximum speed limits in violation of subdivision (b), (c), (d), (f) or (g) of section eleven hundred eighty of this chapter through the installation and operation of photo speed violation monitoring systems, in accordance with article thirty of this chapter; to comply with bus lane restrictions as defined by article twenty-four of this chapter through the installation and operation of bus lane photo devices, in accordance with article twenty-four of this chapter; to comply with toll collection regulations of certain public authorities through the installation and operation of photo-monitoring systems, in accordance with the provisions of section two thousand nine hundred eighty-five of the public authorities law and sections sixteen-a, sixteen-b and sixteen-c of chapter seven hundred seventy-four of the laws of nineteen hundred fifty; to stop for a school bus displaying a red visual signal in violation of section eleven hundred seventy-four of this chapter through the installation and operation of school bus photo violation monitoring systems, in accordance with article twenty-nine of this chapter; to comply with certain posted maximum speed limits in violation of subdivision (b), (d), (f) or (g) of section eleven hundred eighty of this chapter within a highway construction or main-

1 tenance work area through the installation and operation of photo speed
2 violation monitoring systems, in accordance with article thirty of this
3 chapter; to comply with gross vehicle weight and/or axle weight
4 restrictions in violation of section three hundred eighty-five of this
5 chapter and the rules of the applicable covered agency or covered
6 authority as such terms are defined in article ten of this chapter
7 through the installation and operation of weigh in motion violation
8 monitoring systems, in accordance with article ten of this chapter; ~~[or]~~
9 to comply with bus operation-related traffic regulations as defined by
10 article twenty-four of this chapter in violation of the rules of the
11 department of transportation of the city of New York through the instal-
12 lation and operation of bus operation-related photo devices, in accord-
13 ance with article twenty-four of this chapter; or to comply with traffic
14 control indicators as defined by article twenty-four of this chapter
15 through the installation and operation of traffic control indicator
16 photo devices, in accordance with article twenty-four of this chapter,
17 or fails to appear on a designated hearing date or subsequent adjourned
18 date or fails after a hearing to comply with the determination of a
19 hearing examiner, as prescribed by this article or by rule or regulation
20 of the bureau, such failure to plead or contest, appear or comply shall
21 be deemed, for all purposes, an admission of liability and shall be
22 grounds for rendering and entering a default judgment in an amount
23 provided by the rules and regulations of the bureau. However, after the
24 expiration of the original date prescribed for entering a plea and
25 before a default judgment may be rendered, in such case the bureau shall
26 pursuant to the applicable provisions of law notify such operator or
27 owner, by such form of first class mail as the commission may direct;
28 (1) of the violation charged, or liability alleged in accordance with
29 any provisions of law specifically authorizing the imposition of mone-
30 tary liability on the owner of a vehicle for failure of an operator
31 thereof: to comply with traffic-control indications in violation of
32 subdivision (d) of section eleven hundred eleven of this chapter through
33 the installation and operation of traffic-control signal photo viola-
34 tion-monitoring systems, in accordance with article twenty-four of this
35 chapter; to comply with certain posted maximum speed limits in violation
36 of subdivision (b), (c), (d), (f) or (g) of section eleven hundred
37 eighty of this chapter through the installation and operation of photo
38 speed violation monitoring systems, in accordance with article thirty of
39 this chapter; to comply with bus lane restrictions as defined by article
40 twenty-four of this chapter through the installation and operation of
41 bus lane photo devices, in accordance with article twenty-four of this
42 chapter; to comply with toll collection regulations of certain public
43 authorities through the installation and operation of photo-monitoring
44 systems, in accordance with the provisions of section two thousand nine
45 hundred eighty-five of the public authorities law and sections
46 sixteen-a, sixteen-b and sixteen-c of chapter seven hundred seventy-four
47 of the laws of nineteen hundred fifty; to stop for a school bus display-
48 ing a red visual signal in violation of section eleven hundred seventy-
49 four of this chapter through the installation and operation of school
50 bus photo violation monitoring systems, in accordance with article twen-
51 ty-nine of this chapter; to comply with certain posted maximum speed
52 limits in violation of subdivision (b), (d), (f) or (g) of section elev-
53 en hundred eighty of this chapter within a highway construction or main-
54 tenance work area through the installation and operation of photo speed
55 violation monitoring systems, in accordance with article thirty of this
56 chapter; to comply with gross vehicle weight and/or axle weight

1 restrictions in violation of section three hundred eighty-five of this
2 chapter and the rules of the applicable covered agency or covered
3 authority as such terms are defined in article ten of this chapter
4 through the installation and operation of weigh in motion violation
5 monitoring systems, in accordance with article ten of this chapter; ~~[or]~~
6 to comply with bus operation-related traffic regulations as defined by
7 article twenty-four of this chapter in violation of the rules of the
8 department of transportation of the city of New York through the instal-
9 lation and operation of bus operation-related photo devices, in accord-
10 ance with article twenty-four of this chapter; or to comply with traffic
11 control indicators as defined by article twenty-four of this chapter
12 through the installation and operation of traffic control indicator
13 photo devices, in accordance with article twenty-four of this
14 chapter, (2) of the impending default judgment, (3) that such judgment
15 will be entered in the Civil Court of the city in which the bureau has
16 been established, or other court of civil jurisdiction or any other
17 place provided for the entry of civil judgments within the state of New
18 York, and (4) that a default may be avoided by entering a plea or
19 contesting an allegation of liability in accordance with any provisions
20 of law specifically authorizing the imposition of monetary liability on
21 the owner of a vehicle for failure of an operator thereof: to comply
22 with traffic-control indications in violation of subdivision (d) of
23 section eleven hundred eleven of this chapter through the installation
24 and operation of traffic-control signal photo violation-monitoring
25 systems, in accordance with article twenty-four of this chapter; to
26 comply with certain posted maximum speed limits in violation of subdivi-
27 sion (b), (c), (d), (f) or (g) of section eleven hundred eighty of this
28 chapter through the installation and operation of photo speed violation
29 monitoring systems, in accordance with article thirty of this chapter;
30 to comply with bus lane restrictions as defined by article twenty-four
31 of this chapter through the installation and operation of bus lane photo
32 devices, in accordance with article twenty-four of this chapter; to
33 comply with toll collection regulations of certain public authorities
34 through the installation and operation of photo-monitoring systems, in
35 accordance with the provisions of section two thousand nine hundred
36 eighty-five of the public authorities law and sections sixteen-a,
37 sixteen-b and sixteen-c of chapter seven hundred seventy-four of the
38 laws of nineteen hundred fifty; to stop for a school bus displaying a
39 red visual signal in violation of section eleven hundred seventy-four of
40 this chapter through the installation and operation of school bus photo
41 violation monitoring systems, in accordance with article twenty-nine of
42 this chapter; to comply with certain posted maximum speed limits in
43 violation of subdivision (b), (d), (f) or (g) of section eleven hundred
44 eighty of this chapter within a highway construction or maintenance work
45 area through the installation and operation of photo speed violation
46 monitoring systems, in accordance with article thirty of this chapter;
47 to comply with gross vehicle weight and/or axle weight restrictions in
48 violation of section three hundred eighty-five of this chapter and the
49 rules of the applicable covered agency or covered authority as such
50 terms are defined in article ten of this chapter through the installa-
51 tion and operation of weigh in motion violation monitoring systems, in
52 accordance with article ten of this chapter; ~~[or]~~ to comply with bus
53 operation-related traffic regulations as defined by article twenty-four
54 of this chapter in violation of the rules of the department of transpor-
55 tation of the city of New York through the installation and operation of
56 bus operation-related photo devices, in accordance with article twenty-

four of this chapter; or to comply with traffic control indicators as defined by article twenty-four of this chapter through the installation and operation of traffic control indicator photo devices, in accordance with article twenty-four of this chapter; or making an appearance within thirty days of the sending of such notice. Pleas entered and allegations contested within that period shall be in the manner prescribed in the notice and not subject to additional penalty or fee. Such notice of impending default judgment shall not be required prior to the rendering and entry thereof in the case of operators or owners who are non-residents of the state of New York. In no case shall a default judgment be rendered or, where required, a notice of impending default judgment be sent, more than two years after the expiration of the time prescribed for entering a plea or contesting an allegation. When a person has demanded a hearing, no fine or penalty shall be imposed for any reason, prior to the holding of the hearing. If the hearing examiner shall make a determination on the charges, sustaining them, such hearing examiner shall impose no greater penalty or fine than those upon which the person was originally charged.

§ 8. Subparagraph (i) of paragraph a of subdivision 5-a of section 401 of the vehicle and traffic law, as amended by section 7 of part N of chapter 58 of the laws of 2025, is amended to read as follows:

(i) If at the time of application for a registration or renewal thereof there is a certification from a court, parking violations bureau, traffic and parking violations agency or administrative tribunal of appropriate jurisdiction that the registrant or their representative failed to appear on the return date or any subsequent adjourned date or failed to comply with the rules and regulations of an administrative tribunal following entry of a final decision in response to a total of three or more summonses or other process in the aggregate, issued within an eighteen month period, charging either that: (i) such motor vehicle was parked, stopped or standing, or that such motor vehicle was operated for hire by the registrant or their agent without being licensed as a motor vehicle for hire by the appropriate local authority, in violation of any of the provisions of this chapter or of any law, ordinance, rule or regulation made by a local authority; or (ii) the registrant was liable for a violation of subdivision (d) of section eleven hundred eleven of this chapter imposed pursuant to a local law or ordinance imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with traffic-control indications through the installation and operation of traffic-control signal photo violation-monitoring systems, in accordance with article twenty-four of this chapter; or (iii) the registrant was liable for a violation of subdivision (b), (c), (d), (f) or (g) of section eleven hundred eighty of this chapter imposed pursuant to a demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such posted maximum speed limits through the installation and operation of photo speed violation monitoring systems, in accordance with article thirty of this chapter; or (iv) the registrant was liable for a violation of bus lane restrictions as defined by article twenty-four of this chapter imposed pursuant to a bus rapid transit program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such bus lane restrictions through the installation and operation of bus lane photo devices, in accordance with article twenty-four of this chapter; or (v) the registrant was liable for a violation of section eleven hundred seventy-four of this chapter when meeting a school bus marked and equipped as provided in subdivi-

1 sions twenty and twenty-one-c of section three hundred seventy-five of
2 this chapter imposed pursuant to a local law or ordinance imposing mone-
3 tary liability on the owner of a vehicle for failure of an operator
4 thereof to comply with school bus red visual signals through the instal-
5 lation and operation of school bus photo violation monitoring systems,
6 in accordance with article twenty-nine of this chapter; or (vi) the
7 registrant was liable for a violation of section three hundred eighty-
8 five of this chapter and the rules of the applicable covered agency or
9 covered authority as such terms are defined in article ten of this chap-
10 ter in relation to gross vehicle weight and/or axle weight violations
11 imposed pursuant to a weigh in motion demonstration program imposing
12 monetary liability on the owner of a vehicle for failure of an operator
13 thereof to comply with such gross vehicle weight and/or axle weight
14 restrictions through the installation and operation of weigh in motion
15 violation monitoring systems, in accordance with article ten of this
16 chapter; or (vii) the registrant was liable for a violation of subdivi-
17 sion (b), (d), (f) or (g) of section eleven hundred eighty of this chap-
18 ter imposed pursuant to a demonstration program imposing monetary
19 liability on the owner of a vehicle for failure of an operator thereof
20 to comply with such posted maximum speed limits within a highway
21 construction or maintenance work area through the installation and oper-
22 ation of photo speed violation monitoring systems, in accordance with
23 article thirty of this chapter[7]; or (viii) the registrant was liable
24 for a violation of bus operation-related traffic regulations as defined
25 by article twenty-four of this chapter imposed pursuant to a demon-
26 stration program imposing monetary liability on the owner of a vehicle
27 for failure of an operator thereof to comply with such bus operation-re-
28 lated traffic regulations through the installation and operation of bus
29 operation-related photo devices, in accordance with article twenty-four
30 of this chapter[7]; or (ix) the registrant was liable for a violation of
31 traffic control indicators as defined by article twenty-four of this
32 chapter imposed pursuant to a program imposing monetary liability on the
33 owner of a vehicle for failure of an operator thereof to comply with
34 such traffic control indicators through the installation and operation
35 of traffic control indicator photo devices, in accordance with article
36 twenty-four of this chapter, the commissioner or their agent shall deny
37 the registration or renewal application until the applicant provides
38 proof from the court, traffic and parking violations agency or adminis-
39 trative tribunal wherein the charges are pending that an appearance or
40 answer has been made or in the case of an administrative tribunal that
41 such applicant has complied with the rules and regulations of said
42 tribunal following entry of a final decision. Where an application is
43 denied pursuant to this section, the commissioner may, in their
44 discretion, deny a registration or renewal application to any other
45 person for the same vehicle and may deny a registration or renewal
46 application for any other motor vehicle registered in the name of the
47 applicant where the commissioner has determined that such registrant's
48 intent has been to evade the purposes of this subdivision and where the
49 commissioner has reasonable grounds to believe that such registration or
50 renewal will have the effect of defeating the purposes of this subdivi-
51 sion. Such denial shall only remain in effect as long as the summonses
52 remain unanswered, or in the case of an administrative tribunal, the
53 registrant fails to comply with the rules and regulations following
54 entry of a final decision.

§ 9. Subdivision 1-a of section 1809 of the vehicle and traffic law, as amended by section 8 of part N of chapter 58 of the laws of 2025, is amended to read as follows:

1-a. Notwithstanding the provisions of subdivision one of this section, the provisions of subdivision one of this section shall not apply to an adjudication of liability of owners: (a) for violations of subdivision (d) of section eleven hundred eleven of this chapter imposed pursuant to a local law or ordinance imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with traffic-control indications through the installation and operation of traffic-control signal photo violation-monitoring systems, in accordance with article twenty-four of this chapter; or (b) for violations of subdivision (b), (c), (d), (f) or (g) of section eleven hundred eighty of this chapter imposed pursuant to a demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such posted maximum speed limits through the installation and operation of photo speed violation monitoring systems, in accordance with article thirty of this chapter; or (c) for violations of bus lane restrictions as defined by article twenty-four of this chapter imposed pursuant to a bus rapid transit program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such bus lane restrictions through the installation and operation of bus lane photo devices, in accordance with article twenty-four of this chapter; or (d) for violations of toll collection regulations imposed by certain public authorities pursuant to the law authorizing such public authorities to impose monetary liability on the owner of a vehicle for failure of an operator thereof to comply with toll collection regulations of such public authorities through the installation and operation of photo-monitoring systems, in accordance with the provisions of section two thousand nine hundred eighty-five of the public authorities law and sections sixteen-a, sixteen-b and sixteen-c of chapter seven hundred seventy-four of the laws of nineteen hundred fifty; or (e) for violations of section eleven hundred seventy-four of this chapter when meeting a school bus marked and equipped as provided in subdivisions twenty and twenty-one-c of section three hundred seventy-five of this chapter imposed pursuant to a local law or ordinance imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with school bus red visual signals through the installation and operation of school bus photo violation monitoring systems, in accordance with article twenty-nine of this chapter; or (f) for violations of section three hundred eighty-five of this chapter and the rules of the applicable covered agency or covered authority as such terms are defined in article ten of this chapter in relation to gross vehicle weight and/or axle weight violations imposed pursuant to a weigh in motion demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such gross vehicle weight and/or axle weight restrictions through the installation and operation of weigh in motion violation monitoring systems, in accordance with article ten of this chapter; or (g) for violations of subdivision (b), (d), (f) or (g) of section eleven hundred eighty of this chapter imposed pursuant to a demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such posted maximum speed limits within a highway construction or maintenance work area through the installation and operation of photo speed violation monitoring systems, in accordance with article thirty of this chapter;

1 or (h) for violations of bus operation-related traffic regulations as
2 defined by article twenty-four of this chapter imposed pursuant to a
3 demonstration program imposing monetary liability on the owner of a
4 vehicle for failure of an operator thereof to comply with such bus oper-
5 ation-related traffic regulations through the installation and operation
6 of bus operation-related photo devices, in accordance with article twenty-
7 ty-four of this chapter; or (i) for violations of traffic control indi-
8 cators as defined by article twenty-four of this chapter imposed pursu-
9 ant to a program imposing monetary liability on the owner of a vehicle
10 for failure of an operator thereof to comply with such traffic control
11 indicators through the installation and operation of traffic control
12 indicator photo devices, in accordance with article twenty-four of this
13 chapter.

14 § 10. Subdivision 1 of section 1809-a of the vehicle and traffic law,
15 as amended by section 10 of part MM of chapter 56 of the laws of 2023,
16 is amended to read as follows:

17 1. The provisions of any other general or special law notwithstanding,
18 whenever, in a city having a population of one hundred thousand or more
19 according to the nineteen hundred eighty United States census,
20 proceedings in an administrative tribunal or a court result in a finding
21 of liability, or conviction for the violation of any statute, local law,
22 ordinance or rule involving the parking, stopping or standing of a motor
23 vehicle, except (a) an adjudication of liability of an owner for a
24 violation of bus operation-related traffic regulations as defined by
25 article twenty-four of this chapter imposed pursuant to a demonstration
26 program imposing monetary liability on the owner of a vehicle for fail-
27 ure of an operator thereof to comply with such bus operation-related
28 traffic regulations through the installation and operation of bus opera-
29 tion-related photo devices, in accordance with article twenty-four of
30 this chapter, or (b) an adjudication of liability of an owner for a
31 violation of traffic control indicators as defined by article twenty-
32 four of this chapter imposed pursuant to a program imposing monetary
33 liability on the owner of a vehicle for failure of an operator thereof
34 to comply with such traffic control indicators through the installation
35 and operation of traffic control indicator photo devices, in accordance
36 with article twenty-four of this chapter, there shall be levied a manda-
37 tory surcharge in addition to any other sentence, fine or penalty other-
38 wise permitted or required, in the amount of fifteen dollars. Such
39 surcharge shall not be deemed a monetary penalty for the purposes of
40 section two hundred thirty-seven of this chapter or section 19-203 of
41 the administrative code of the city of New York.

42 § 11. Subdivision 1 of section 1809-aa of the vehicle and traffic law,
43 as amended by section 11 of part MM of chapter 56 of the laws of 2023,
44 is amended to read as follows:

45 1. Notwithstanding any other provision of law, whenever proceedings in
46 an administrative tribunal or court result in a conviction for a
47 violation of section twelve hundred, twelve hundred one or twelve
48 hundred two of this chapter, except (a) an adjudication of liability of
49 an owner for a violation of bus operation-related traffic regulations as
50 defined by article twenty-four of this chapter imposed pursuant to a
51 demonstration program imposing monetary liability on the owner of a
52 vehicle for failure of an operator thereof to comply with such bus oper-
53 ation-related traffic regulations through the installation and operation
54 of bus operation-related photo devices, in accordance with article twen-
55 ty-four of this chapter, or (b) an adjudication of liability of an owner
56 for a violation of traffic control indicators as defined by article

twenty-four of this chapter imposed pursuant to a program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such traffic control indicators through the installation and operation of traffic control indicator photo devices, in accordance with article twenty-four of this chapter, there shall be levied a mandatory surcharge in addition to any other sentence, fine or penalty otherwise permitted or required, in the amount of twenty-five dollars.

§ 12. Paragraph a of subdivision 1 of section 1809-e of the vehicle and traffic law, as amended by section 9 of part N of chapter 58 of the laws of 2025, is amended to read as follows:

a. Notwithstanding any other provision of law, whenever proceedings in a court or an administrative tribunal of this state result in a conviction for an offense under this chapter, except a conviction pursuant to section eleven hundred ninety-two of this chapter, or for a traffic infraction under this chapter, or a local law, ordinance, rule or regulation adopted pursuant to this chapter, except: (i) a traffic infraction involving standing, stopping, or parking or violations by pedestrians or bicyclists; and (ii) an adjudication of liability of an owner for a violation of subdivision (d) of section eleven hundred eleven of this chapter imposed pursuant to a local law or ordinance imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with traffic-control indications through the installation and operation of traffic-control signal photo violation-monitoring systems, in accordance with article twenty-four of this chapter; and (iii) an adjudication of liability of an owner for a violation of subdivision (b), (c), (d), (f) or (g) of section eleven hundred eighty of this chapter imposed pursuant to a demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such posted maximum speed limits through the installation and operation of photo speed violation monitoring systems, in accordance with article thirty of this chapter; and (iv) an adjudication of liability of an owner for a violation of bus lane restrictions as defined by article twenty-four of this chapter imposed pursuant to a bus rapid transit program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such bus lane restrictions through the installation and operation of bus lane photo devices, in accordance with article twenty-four of this chapter; and (v) an adjudication of liability of an owner for a violation of toll collection regulations imposed by certain public authorities pursuant to the law authorizing such public authorities to impose monetary liability on the owner of a vehicle for failure of an operator thereof to comply with toll collection regulations of such public authorities through the installation and operation of photo-monitoring systems, in accordance with section two thousand nine hundred eighty-five of the public authorities law or sections sixteen-a, sixteen-b and sixteen-c of chapter seven hundred seventy-four of the laws of nineteen hundred fifty; and (vi) an adjudication of liability of an owner for a violation of section eleven hundred seventy-four of this chapter when meeting a school bus marked and equipped as provided in subdivisions twenty and twenty-one-c of section three hundred seventy-five of this chapter imposed pursuant to a local law or ordinance imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with school bus red visual signals through the installation and operation of school bus photo violation monitoring systems, in accordance with article twenty-nine of this chapter; and (vii) an adjudication of liability of an owner

1 for a violation of section three hundred eighty-five of this chapter and
2 the rules of the applicable covered agency or covered authority as such
3 terms are defined in article ten of this chapter in relation to gross
4 vehicle weight and/or axle weight violations imposed pursuant to a weigh
5 in motion demonstration program imposing monetary liability on the owner
6 of a vehicle for failure of an operator thereof to comply with such
7 gross vehicle weight and/or axle weight restrictions through the instal-
8 lation and operation of weigh in motion violation monitoring systems, in
9 accordance with article ten of this chapter; and (viii) an adjudication
10 of liability of an owner for a violation of subdivision (b), (d), (f) or
11 (g) of section eleven hundred eighty of this chapter imposed pursuant to
12 a demonstration program imposing monetary liability on the owner of a
13 vehicle for failure of an operator thereof to comply with such posted
14 maximum speed limits within a highway construction or maintenance work
15 area through the installation and operation of photo speed violation
16 monitoring systems, in accordance with article thirty of this chapter;
17 and (ix) an adjudication of liability of an owner for a violation of bus
18 operation-related traffic regulations as defined by article twenty-four
19 of this chapter imposed pursuant to a demonstration program imposing
20 monetary liability on the owner of a vehicle for failure of an operator
21 thereof to comply with such bus operation-related traffic regulations
22 through the installation and operation of bus operation-related photo
23 devices, in accordance with article twenty-four of this chapter; and (x)
24 an adjudication of liability of an owner for a violation of traffic
25 control indicators as defined by article twenty-four of this chapter
26 imposed pursuant to a program imposing monetary liability on the owner
27 of a vehicle for failure of an operator thereof to comply with such
28 traffic control indicators through the installation and operation of
29 traffic control indicator photo devices, in accordance with article
30 twenty-four of this chapter, there shall be levied in addition to any
31 sentence, penalty or other surcharge required or permitted by law, an
32 additional surcharge of twenty-eight dollars.

33 § 13. Subdivision 2 of section 87 of the public officers law is
34 amended by adding a new paragraph (w) to read as follows:

35 (w) are photographs, microphotographs, videotape or other recorded
36 images prepared under authority of section eleven hundred eleven-j of
37 the vehicle and traffic law.

38 § 14. The purchase or lease of equipment for a demonstration program
39 established pursuant to section 1111-j of the vehicle and traffic law,
40 as added by section one of this act, shall be subject to the provisions
41 of section 103 of the general municipal law.

42 § 15. This act shall take effect one year after it shall have become a
43 law; provided, however, that sections one, thirteen and fourteen of this
44 act shall expire six years after it shall have become a law, when upon
45 such date the provisions of such sections shall be deemed repealed;
46 provided further, however, that:

47 (a) the amendments to subdivision 1 of section 1809-a of the vehicle
48 and traffic law made by section ten of this act shall not affect the
49 repeal of such section and shall be deemed repealed therewith; and

50 (b) effective immediately, the addition, amendment and/or repeal of
51 any rule or regulation necessary for the implementation of section one
52 of this act on its effective date are authorized to be made and
53 completed on or before such effective date.